

Kamlawati Devi v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 30 October 2012 · WRIT - C No. 46995 of 2012 · **Writ disposed; relegated to consumer forum or Supply Code objection.**

HEADNOTE

Writ against a post-tenancy electricity demand was not entertained where a consumer complaint was already pending. The consumer was left to pursue that complaint or to file an objection under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Kamlawati Devi sought quashing of a 25 June 2012 demand of Rs 4,19,932. She said the Forest Department's commercial tenancy ended in 1995 with dues paid, that she was later billed commercially, that Complaint No. 66/2009 was pending before the District Consumer Forum, Basti, and that her 31 July 2012 Executive Engineer objection was undecided. The licensee said only domestic bills issued after 1995, that payments save Rs 2,500 were unproved, and that the connection stood in her deceased husband's name.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

demand-notice-writ-relegation

HOLDING

The Court declined to entertain a writ seeking quashing of a demand notice, holding it was not a fit case for writ proceedings. The petitioner having already filed a complaint before the District Consumer Forum, it was open to her to pursue that complaint or to file an objection in accordance with the U.P. Electricity Supply Code, 2005. The writ was disposed of on that observation. ¶ 1

FLAG Order cites the Supply Code 2005 generally; no clause numbered.

PRINCIPLE TAGS

relegate-to-statutory-remedy Writ against a post-tenancy electricity demand was not entertained where a consumer complaint was already pending. The consumer was left to pursue that complaint or to file an objection under the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 25 JUNE 2012 DEMAND OF RS 4,19,932

Writ not entertained on merits. ¶ 1

NOT DECIDED — WHETHER POST-1995 BILLING WAS COMMERCIAL OR DOMESTIC, AND THE WIDOW'S LIABILITY ON THE DECEASED HUSBAND'S CONNECTION

¶ 1